

Lata Keshri vs Damyanti Keshri on 4 May, 2026

Author: Sanjay K. Agrawal

Bench: Sanjay K. Agrawal

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(MAC Nos.2293/2019 & 2036/2019)

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HIGH COURT OF CHHATTISGARH AT BILASPUR

MAC No. 2293 of 2019

{Arising out of award dated 16-7-2019 passed by the Additional Motor
Accident Claims Tribunal (FTC), North Bastar Kanker in Claim Case
No.13/2017}

United India Insurance Company Limited, through its Divisional
Manager, Divisional Office Ist Floor, Krishna Complex, Jail Road,
Kutchery Chowk, Raipur, District Raipur, Chhattisgarh
(Non-Applicant No.3)
--- Appellant

versus

1. Damyanti Keshari, Wd/o Late Narad Singh Keshari, aged 40 years,
(Applicant No.1)

2. Minor Purab Keshari, S/o Late Narad Singh Keshari, aged 12 years,
Minor through Mother-Damyanti Keshari,
(Applicant No.2)

Both are R/o Ward No.14, Nagar Panchayat Narharpur, Tah.
Narharpur, District North Bastar Kanker, Chhattisgarh

3. Ashok Kumar Jain, S/o Devlal Jain, aged 23 years, R/o Vill. Pataud,
P.S. & District North Bastar Kanker, Chhattisgarh
(Non-Applicant No.1)

4. Devendra Singh Thakur, S/o Chhabilal Thakur, aged 52 years, Caste

Kshatriya, R/o Kankaleen Para, M.G. Ward Kanker, District North Bastar Kanker, Chhattisgarh

(Non-Applicant No.2)

5. Lata Keshari, Wd/o Narad Keshari, aged 47 years, R/o Vill. Birgudi, Tah. Nagari, District Dhamtari, Chhattisgarh

(Non-Applicant No.4

--- Respondents

AND (MAC Nos.2293/2019 & 2036/2019) {Arising out of award dated 16-7-2019 passed by the Additional Motor Accident Claims Tribunal (FTC), North Bastar Kanker in Claim Case No.13/2017} Lata Keshri, Wd/o Late Narad Keshri, aged about 47 years, R/o Village Birgudi, Tahsil Nagri, District Dhamtari, Chhattisgarh.

(Claimant)

--- Appellant Versus

1. Damyanti Keshri, Wd/o Late Narad Singh, aged about 40 years.

2. Minor Purab Keshri, S/o Late Narad Keshri, aged about 12 years, (minor) through natural guardian mother Damyanti Keshri. Both R/o Ward No.14, Nagar Panchayat, Narharpur, Tahsil Narharpur, District North Bastar Kanker, Chhattisgarh.

(Claimants)

3. Ashok Kumar Jain, S/o Devlal Jain, aged about 23 years, R/o Village Patoud, Police Station and District North Bastar Kanker, Chhattisgarh.

(Driver of offending vehicle Tata Indica bearing registration No.CG-19/BD-0121)

4. Devendra Singh Thakur, S/o Chhabilal Thakur, aged about 52 years, R/o Kankalin Para, M.G. Ward Kanker, District North Bastar Kanker, Chhattisgarh.

(Owner of offending vehicle Tata Indica bearing registration No.CG-19/BD-0121)

5. Branch Manager, The United India Insurance Company Limited, Krishna Complex, 1st Floor, Jail Road, Katcheri Chowk, Raipur Chhattisgarh.

(Insurer of offending vehicle Tata Indica bearing registration No.CG-19/BD-0121)

--- Respondents For Insurance Company : Mr. Dashrath Gupta, Advocate. For First Wife Lata Keshari : Mr. Aditya Khare, Advocate. For Second Wife Damayanti Keshari : Mr. Amit Kumar Sahu, Advocate. Amicus Curiae : Mr. Rahul Tamaskar and Mr. Shashank Agrawal, Advocates.

Single Bench:-

Hon'ble Shri Justice Sanjay K. Agrawal (MAC Nos.2293/2019 & 2036/2019)
Judgment on Board 04/05/2026

1. Since both the above titled appeals, filed in terms of Section 173 of the Motor Vehicles Act, 1988 (for short, 'the MV Act'), arise out of a common award dated 16-7-2019 passed by the Additional Motor Accident Claims Tribunal (FTC), North Bastar Kanker in Claim Case No.13/2017 and since common questions of facts and law are involved in both these appeals, they have been clubbed together, heard together and are being disposed of by this common judgment.

2. The Insurance Company has preferred MAC No.2293/2019 questioning the award, whereas first wife of the deceased has preferred MAC No.2036/2019 questioning the apportionment of the award amount, as 25% has been awarded to her.

3. The aforesaid challenge has been made on the following factual backdrop: -

4. Narad Singh Keshari had met with an accident on 27-12-2016 and succumbed to the injuries. Consequently, his second wife Smt. Damayanti Keshari and her minor son Purab Keshari filed claim petition under Section 166 of the MV Act impleading first wife Smt. Lata Keshari as party non-applicant and also eventually, the Insurance Company - United India Insurance Company Limited was made party as the offending vehicle was insured with the said Insurance Company. The Claims Tribunal after appreciating oral and documentary evidence, came to the conclusion that since the (MAC Nos.2293/2019 & 2036/2019) deceased was Head Master in the school, he is entitled for a compensation of 50,15,237/- and directed that 25% be paid to first wife Smt. Lata Keshari and 25% be paid to second wife Smt. Damayanti Keshari and remaining 50% has been awarded in favour of minor Purab Keshari. In this factual backdrop, the aforesaid two appeals have arisen.

5. Mr. Dashrath Gupta, learned counsel appearing on behalf of the appellant/Insurance Company in MAC No.2293/2019, would submit that the Claims Tribunal is absolutely unjustified in granting the claim petition, as there is inordinate delay in lodging the FIR, as the incident occurred on 27-12-2016, whereas the FIR was lodged on 24-

2-2017 and eventually, charge-sheet was filed on 4-3-2017 and therefore the Insurance Company ought not to have been saddled with liability to pay the compensation.

6. Mr. Aditya Khare, learned counsel appearing on behalf of the appellant in MAC No.2036/2019 i.e. first wife of the deceased namely Smt. Lata Keshari, would submit that since the present appellant is the first wife of the deceased, the entire compensation ought to have been paid to her.

7. Mr. Amit Kumar Sahu, learned counsel appearing on behalf of second wife of the deceased namely Smt. Damayanti Keshari, would submit that the Claims Tribunal is justified in awarding 25% of the

award amount to each of the two wives of the deceased and 50% to minor Purab Keshari, which is strictly in accordance with law.

(MAC Nos.2293/2019 & 2036/2019)

8. Mr. Rahul Tamaskar, learned amicus curiae, would submit that second wife Smt. Damayanti Keshari being the dependent would be entitled for compensation in light of the decision of the Supreme Court in the matter of Gujarat State Road Transport Corporation, Ahmedabad v. Ramanbhai Prabhatbhai and another¹ followed in the matter of Montford Brothers of St. Gabriel and another v. United India Insurance and another² and apportionment has rightly been made, as the first wife is working as Supervisor in Urban Development Block, Village Ghotul and the second wife is working as Lecturer (Panchayat). He would rely upon the decision of the High Court of Jammu and Kashmir and Ladakh in the matter of Zarifa Banoo and others v. Manzoor Ahmad Sheergujri and others³ and that of the High Court of Madras in the matter of Susila and others v. S. Thirumalai and others⁴ to buttress his submission.

9. Mr. Shashank Agrawal, learned amicus curiae, would bring to the notice of the Court the decision of the Bombay High Court in the matter of Abdul Rahman and others v. Dayaram and others⁵ to contend that the question of apportionment will not be guided by the personal law and it will be guided by the level of dependency. 1 (1987) 3 SCC 234 2 (2014) 3 SCC 394 3 2023 SCC OnLine J&K 1015 4 2023 SCC OnLine Mad 2581 5 1988 SCC OnLine Bom 365 (MAC Nos.2293/2019 & 2036/2019)

10. I have heard learned counsel for the parties and considered their rival submissions made herein-above and also gone through the record with utmost circumspection.

MAC No.2293/2019 (United India Insurance Company Limited v. Damyanti Keshari and others)

11. Firstly, this Court will decide the appeal filed on behalf of the Insurance Company.

12. The quantum of compensation awarded by the Claims Tribunal is not in dispute. The only submission raised on behalf of the Insurance Company is, the incident occurred on 27-12-2016 and the FIR was lodged on 24-2-2017, therefore, the delay in lodging the FIR is fatal to the claimants and it ought to have been accepted by the Claims Tribunal and the claim ought to have been rejected.

13. In the matter of Ravi v. Badrinarayan and others⁶, it has been held by the Supreme Court that delay in lodging FIR cannot be a ground to doubt claimant's case and it is not a ground to dismiss the claim petition. It has been observed by their Lordships as under: -

"17. It is well settled that delay in lodging the FIR cannot be a ground to doubt the claimant's case. Knowing the Indian conditions as they are, we cannot expect a common man to first rush to the police station immediately after an accident. Human nature and family responsibilities occupy the mind of kith and kin to such an extent

that they give more importance to get the victim treated rather than to rush to the police station. Under such circumstances, they are not expected to act mechanically with promptitude in lodging the FIR with the police. Delay in lodging the FIR thus, cannot be the ground to deny justice to the victim.

6 (2011) 4 SCC 693 (MAC Nos.2293/2019 & 2036/2019)

18. In cases of delay, the courts are required to examine the evidence with a closer scrutiny and in doing so the contents of the FIR should also be scrutinised more carefully. If the court finds that there is no indication of fabrication or it has not been concocted or engineered to implicate innocent persons then, even if there is a delay in lodging the FIR, the claim case cannot be dismissed merely on that ground. The purpose of lodging the FIR in such type of cases is primarily to intimate the police to initiate investigation of criminal offences.

19. Lodging of FIR certainly proves the factum of accident so that the victim is able to lodge a case for compensation but delay in doing so cannot be the main ground for rejecting the claim petition. In other words, although lodging of FIR is vital in deciding motor accident claim cases, delay in lodging the same should not be treated as fatal for such proceedings, if claimant has been able to demonstrate satisfactory and cogent reasons for it. There could be a variety of reasons in genuine cases for delayed lodgement of FIR. Unless kith and kin of the victim are able to regain a certain level of tranquillity of mind and are composed to lodge it, even if, there is delay, the same deserves to be condoned. In such circumstances, the authenticity of the FIR assumes much more significance than delay in lodging thereof supported by cogent reasons."

14. In view of the aforesaid decision of the Supreme Court in Ravi (supra), the ground raised on behalf of the Insurance Company that delay in lodging the FIR is fatal to the claimants, is rejected and accordingly, the appeal filed on behalf of the Insurance Company (MAC No.2293/2019) deserves to be dismissed and is hereby dismissed.

MAC No. 2036 of 2019 (Lata Keshri v. Damyanti Keshri and others)

15. Now, the appeal filed on behalf of the first wife of deceased Narad Singh Keshari remains for consideration.

(MAC Nos.2293/2019 & 2036/2019)

16. The short question involved in this appeal is, whether the Claims Tribunal is justified in holding the second wife - Smt. Damayanti Keshari as legal representative/dependent and further justified in awarding 25% compensation to her and 50% to her son minor Purab Keshari?

17. Section 166 of the MV Act defines as to who shall be entitled for compensation. Clause (c) of sub-section (1) of Section 166 states as under: -

"166. Application for compensation.--An application for compensation arising out of an accident of the nature specified in sub-section (1) of section 165 may be made--

(a) and (b) xxx xxx xxx

(c) where death has resulted from the accident, by all or any of the legal representatives of the deceased; or

(d) xxx xxx xxx xxx xxx xxx xxx xxx xxx xxx xxx xxx xxx xxx xxx"

18. Thus, by virtue of Section 166(1)(c) of the MV Act, an application for compensation arising out of an accident of the nature specified in sub-section (1) of Section 165 may be made where death has resulted from the accident, by all or any of the legal representatives of the deceased.

19. The term "legal representative" has not been defined in the MV Act, it is defined in Section 2(11) of the Code of Civil Procedure, 1908, which is as follows: -

(MAC Nos.2293/2019 & 2036/2019) "2. (11) 'legal representative' means a person who in law represents the estate of a deceased person, and includes any person who intermeddles with the estate of the deceased and where a party sues or is sued in a representative character the person on whom the estate devolves on the death of the party so suing or sued;"

20. Furthermore, the Supreme Court in Montford Brothers of St. Gabriel (supra) while noticing the definition of the term "legal representative" as defined in Section 2(11) of the CPC and further noticing the provisions contained in Section 166 of the MV Act, has held that in case of death of a person in a motor vehicle accident, right is available to a legal representative of the deceased or the agent of the legal representative to lodge a claim for compensation under the provisions of the Act, and observed as under: -

"10. From the aforesaid provisions it is clear that in case of death of a person in a motor vehicle accident, right is available to a legal representative of the deceased or the agent of the legal representative to lodge a claim for compensation under the provisions of the Act. The issue as to who is a legal representative or its agent is basically an issue of fact and may be decided one way or the other dependent upon the facts of a particular case. But as a legal proposition it is undeniable that a person claiming to be a legal representative has the locus to maintain an application for compensation under Section 166 of the Act, either directly or through any agent, subject to result of a dispute raised by the other side on this issue."

Their Lordships further, considering the decision of Gujarat State Road Transport Corporation case (supra), held as under: -

"12. Para 13 of the Report of Gujarat SRTC case [(1987) 3 SCC 234 : 1987 SCC (Cri) 482 : AIR 1987 SC 1690] reflects the correct philosophy which should guide the courts interpreting the legal provisions of beneficial legislations providing for compensation to those who had suffered loss: (SCC p. 250) (MAC Nos.2293/2019 & 2036/2019) "13. We feel that the view taken by the Gujarat High Court is in consonance with the principles of justice, equity and good conscience having regard to the conditions of the Indian society. Every legal representative who suffers on account of the death of a person due to a motor vehicle accident should have a remedy for realisation of compensation and that is provided by Sections 110-A to 110-F of the Act. These provisions are in consonance with the principles of law of torts that every injury must have a remedy. It is for the Motor Vehicles Accidents Tribunal to determine the compensation which appears to it to be just as provided in Section 110-B of the Act and to specify the person or persons to whom compensation shall be paid. The determination of the compensation payable and its apportionment as required by Section 110-B of the Act amongst the legal representatives for whose benefit an application may be filed under Section 110-A of the Act have to be done in accordance with well-known principles of law. We should remember that in an Indian family brothers, sisters and brothers' children and some times foster children live together and they are dependent upon the breadwinner of the family and if the breadwinner is killed on account of a motor vehicle accident, there is no justification to deny them compensation relying upon the provisions of the Fatal Accidents Act, 1855 which as we have already held has been substantially modified by the provisions contained in the Act in relation to cases arising out of motor vehicles accidents. We express our approval of the decision in Megjibhai Khimji Vira v. Chaturbhai Taljabhai [AIR 1977 Guj 195] and hold that the brother of a person who dies in a motor vehicle accident is entitled to maintain a petition under Section 110-A of the Act if he is a legal representative of the deceased."

13. From the aforesaid quoted extract it is evident that only if there is a justification in consonance with principles of justice, equity and good conscience, a dependant of the deceased may be denied right to claim compensation. Hence, we find no merit in the submission advanced on behalf of the respondent Insurance Company that the claim petition is not maintainable because of the provisions of the Fatal Accidents Act."

(MAC Nos.2293/2019 & 2036/2019)

21. In Gujarat State Road Transport Corporation (supra), it has been clearly held by their Lordships of the Supreme Court that brother of a person who dies in a motor vehicle accident is entitled to maintain a petition under Section 110-A of the MV Act if he is a legal representative of the deceased.

22. In the matter of Rameshwari Devi v. State of Bihar and others⁷, their Lordships of the Supreme Court while considering a matter of Family Pension and its entitlement to children of second marriage, held that deceased employee, a Hindu, contracting second marriage during subsistence of his first marriage, children born out of second marriage, according to the Hindu Marriage Act, 1955, were legitimate though the marriage itself was void, and observed as under: -

14. It cannot be disputed that the marriage between Narain Lal and Yogmaya Devi was in contravention of clause (i) of Section 5 of the Hindu Marriage Act and was a void marriage.

Under Section 16 of this Act, children of a void marriage are legitimate. Under the Hindu Succession Act, 1956, property of a male Hindu dying intestate devolves firstly on heirs in clause (1) which include the widow and son. Among the widow and son, they all get shares (see Sections 8, 10 and the Schedule to the Hindu Succession Act, 1956). Yogmaya Devi cannot be described as a widow of Narain Lal, her marriage with Narain Lal being void. The sons of the marriage between Narain Lal and Yogmaya Devi being the legitimate sons of Narain Lal would be entitled to the property of Narain Lal in equal shares along with that of Rameshwari Devi and the son born from the marriage of Rameshwari Devi with Narain Lal. That is, however, the legal position when a Hindu male dies intestate. Here, however, we are concerned with the family pension and death-cum-retirement gratuity payments which are governed by the relevant rules. It is not disputed before us that if the legal position as aforesaid is correct, there is no 7 (2000) 2 SCC 431 (MAC Nos.2293/2019 & 2036/2019) error with the directions issued by the learned Single Judge in the judgment which is upheld by the Division Bench in LPA by the impugned judgment."

23. In the instant case, it is not in dispute that second wife of the deceased - Smt. Damayanti Keshari was living with the deceased along with her minor son Purab Keshari at the time of accident and therefore the Claims Tribunal has held that the second wife and her son being the dependents of the deceased are entitled to maintain the petition under Section 166 of the MV Act and thereafter proceeded to make enquiry under that petition. However, minor son of the deceased out of his second marriage with Smt. Damayanti Keshari would be the legitimate son of the deceased by virtue of Section 16(1) of the Hindu Marriage Act, 1955. As such, their claim petition has rightly been held to be maintainable and rightly been inquired into by the Claims Tribunal for awarding the compensation. Apportionment of Compensation

24. Now, the question of apportionment of the compensation awarded by the Claims Tribunal would arise for consideration.

25. The Claims Tribunal has awarded a compensation to the tune of 50,15,237/- and directed 25% of the said compensation be paid to each of the wives i.e. first wife Smt. Lata Keshari and second wife Smt. Damayanti Keshari, and remaining 50% was awarded in favour of minor son Purab Keshari.

26. The law of apportionment is absolutely clear. The Bombay High Court in Abdul Rahman (supra) held that the compensation is (MAC Nos.2293/2019 & 2036/2019) being paid taking into

consideration the dependency of the claimants and in that regard, the courts are not to be guided by the apportionment as provided under the personal law/Mohammedan Law in that case.

27. Similarly, in Zarifa Banoo (supra), the Jammu and Kashmir and Ladakh High Court, taking into account the decision of the Bombay High Court in Abdul Rahman (supra) and that of the Supreme Court in the matter of D. Shanmukha Sundaramma v. D. Suneetha and others⁸ has held that the Court/Tribunal cannot be guided by personal law while deciding upon the apportionment of the compensation, which is to be paid taking into consideration the dependency of the claimants, the personal law is not applicable.

28. Coming to the facts of the case, it is clear that though second wife of the deceased Smt. Damayanti Keshari and minor son Purab Keshari cannot be solely considered to be legal representatives of the deceased under the Hindu Marriage Act, 1955, but certainly, they are dependents for the purpose of claiming compensation under the MV Act, as the apportionment of the compensation is to be made not as per personal law, but as per the loss of dependency. Since the first wife and the second wife, both, are earning, as the first wife is posted as Supervisor in Urban Development Block, Village Ghotul, and the second wife is Lecturer (Panchayat), they have rightly been awarded 25% each of the total compensation. Considering the fact that minor Purab Keshari though is son of the deceased out of his wedlock from 8 (2009) 3 SCC 787 (MAC Nos.2293/2019 & 2036/2019) second wife, but by virtue of Section 16(1) of the Hindu Marriage Act, 1955, he is the legitimate son of the deceased for all practical purposes, therefore, he has rightly been awarded 50% of the compensation.

29. In that view of the matter, I do not find any merit in the appeal filed on behalf of first wife of the deceased Smt. Lata Keshari (MAC No.2036/2019), it deserves to be and is accordingly, dismissed.

30. In the result, both the appeals filed on behalf of the Insurance Company and the first of the deceased, stand dismissed. No order as to cost(s).

31. Before parting with the record, I express my gratitude and appreciation to Mr. Rahul Tamaskar and Mr. Shashank Agrawal, Advocates, who appeared as amicus curiae and in short notice, have prepared the case and made submission.

Sd/-

(Sanjay K. Agrawal) Judge Soma